



Bureau of Experts at the Council of Ministers
Official Translation Department

Law of Pesticides in GCC States

Royal Decree No. M/67
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Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.

For any comments or inquiries, please contact the Official Translation Department at:

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Law of Pesticides in GCC States

Article 1

This Law aims to regulate the production, import, and circulation of pesticides in the GCC States.

Article 2

The following words and phrases shall have the meanings assigned thereto unless the context requires otherwise:

Council: Cooperation Council for the GCC States.

GCC States: Member States of the Cooperation Council for the Arab States of the Gulf.

Supreme Council: Supreme Council of the GCC.

General Secretariat: General Secretariat of the GCC.

State: A GCC Member State

Ministry: Ministry of Agriculture or the competent agency responsible for agricultural affairs in the State.

Minister: Minister responsible for agricultural affairs or the head of the competent agency.

Competent Authority: Authority in charge of all matters related to pesticides.

Law: Law of Pesticides in GCC States.

Registration: Process of evaluating the comprehensive scientific data demonstrating the quality and efficacy of a pesticide in the agricultural field, its potency against target pests for which it is registered, and the assurance of its safety to humans, animals, and the environment in general when used in accordance with the information stated on the approved label; verifying its registration in the country of origin in both its raw and final product forms, based on which its import, local manufacturing, and circulation are approved. The pesticide shall then be listed in the records of the Competent Authority under a specific number, and a registration certificate shall be issued in the prescribed form.

Pesticide: Any chemical product, organic or inorganic, synthetic or natural, or any biological product containing traces of microorganisms, used for the control of pests (including attractants and repellents), plant growth regulators, defoliants, desiccants, or transpiration regulators.

Restricted Pesticide: A pesticide included in the list of restricted pesticides issued by the Minister due to its hazardous nature when used, and which may only be used by certified persons under the supervision of the relevant government agencies or specialized companies or establishments authorized by the Ministry.

Banned Pesticide: A pesticide included in the list of banned pesticides issued by the Minister due to its high toxicity or its harmful effect on various environmental components, and which shall not be permitted for circulation.

Circulation: Selling, offering for sale, storing, or possessing pesticides, whether permanently or temporarily, or transporting them by any means.

Importing: Bringing pesticides into the state for a public or private entity, whether by postal parcels, individual importation, or through importers.



Pest: Any species, strain, or biotype of plant or animal organism, or any pathogenic or harmful agent to plants, animals, or their products.

Implementing Regulations: Implementing Regulations of this Law.

Article 3

The Competent Authority shall register pesticides that may be imported, exported, manufactured, circulated, or used in the state.

Article 4

No pesticide may be imported, manufactured, or circulated except after obtaining a license therefor from the Competent Authority in the state, in accordance with the rules and procedures provided for in this Law and its Implementing Regulations.

Article 5

The Minister shall issue, based on the recommendation of the Competent Authority, the following decisions:

1. The types of pesticides prohibited from importation, circulation, or manufacture, referred to as the List of Banned Pesticides, and the types of pesticides restricted for use, referred to as the List of Restricted Pesticides.
2. Conditions and procedures for pesticide registration and the cases in which registration may be cancelled.
3. Conditions and procedures for the manufacture, preparation, import, export, and circulation of pesticides.
4. Procedures for collection and analysis of pesticide samples and the procedures followed with respect to appeals or grievances and the manner of deciding thereon.
5. Conditions and procedures for the use of pesticides and the determination of permissible residue levels thereof in agricultural products.
6. Conditions for disclosing and publishing data of registered pesticides including conditions for their circulation and the recommendations of the Competent Authority regarding their use.
7. Conditions for pesticide destruction procedures in coordination with the relevant entities.

Article 6

The Competent Authority in the state shall determine the applicable fees in accordance with the provisions of this Law and its Implementing Regulations.

Article 7

The Minister may permit the importation of certain restricted or banned pesticides for scientific research purposes subject to the conditions set forth in the Implementing Regulations.

Article 8

The Ministry shall have the right to inspect all imports, exports, and facilities engaged in the manufacture or circulation of any pesticide either through its designated personnel at agricultural quarries and customs border checkpoints, or through any individual delegated by the Ministry to carry out such task for the purpose of ensuring compliance with the provisions of this Law and detecting violations thereof.



Article 9

Officials vested with judicial detection powers shall have the right to enter establishments whose activities fall under the provisions of this Law to verify compliance thereto and detect violations thereof or of any similar provisions.

Article 10

Any person who engages in any of the following acts, whether directly or indirectly through an employee or agent, shall be deemed in violation of the provisions of this Law:

1. Deliberately altering, distorting, or destroying any part of the explanatory information affixed to the package.
2. Opening and/or repacking the package without the official approval of the Competent Authority.
3. Advertising and promoting any pesticide without prior approval from the Competent Authority.
4. Preventing or obstructing Ministry employees responsible for enforcing the provisions of this Law.
5. Importing, circulating, or manufacturing any pesticide without obtaining the required license.
6. Importing, circulating, or manufacturing any damaged, adulterated, or expired pesticides.

Article 11

Each state shall determine the penalties and fines to be applicable to violations of the provisions of this Law or its Implementing Regulations.

Article 12

1. The Minister may issue or amend the Implementing Regulations of this Law or amend them as he deems necessary for the public interest, in accordance with the provisions of this Law and the standards and requirements specified by relevant international conventions.
2. The General Secretariat shall be notified of any Implementing Regulations issued or any amendments thereto.

Article 13

An aggrieved person may submit a grievance to the Minister against decisions issued in implementation of the provisions of this Law in accordance with the laws in force in each state.

Article 14

Any amendment to this Law shall be subject to the agreement of the Member States and shall not enter into force until approved by the Supreme Council. Its entry into force shall be subject to the procedures set forth in Article 15.

Article 15

This Law shall be mandatory and shall enter into force six months following its approval by the Supreme Council.